



CHAPTER 15.

An Act to provide, during twelve months, for the discipline and regulation of the Army and the Air Force.
[22nd April 1943.]

WHEREAS the raising or keeping of a standing army within the United Kingdom in time of peace, unless it be with the consent of Parliament, is against law :

And whereas it is adjudged necessary by His Majesty and this present Parliament that a body of land forces should be continued for the safety of the United Kingdom and the defence of the possessions of His Majesty's Crown, and that the whole number of such forces should consist of such number as His Majesty may deem necessary :

And whereas under the Air Force (Constitution) Act, 1917, ^{7 & 8 Geo 5} His Majesty is entitled to raise and maintain the air force, and ^{c. 51.} it is judged necessary that the whole number of such force should consist of such number as His Majesty may deem necessary :

And whereas it is also judged necessary for the safety of the United Kingdom and the defence of the possessions of this realm that a body of Royal Marine forces should be employed in His Majesty's fleet and naval service under the direction of the Lord High Admiral of the United Kingdom, or the Commissioners for executing the office of Lord High Admiral aforesaid :

And whereas the said marine forces may frequently be quartered or be on shore, or be sent to do duty or be on board transport ships or vessels, merchant ships or vessels, or other ships or vessels, or they may be under other circumstances in which they will not be subject to the laws relating to the government of His Majesty's forces by sea :

And whereas no man can be forejudged of life or limb, or subjected in time of peace to any kind of punishment within this realm, by martial law, or in any other manner than by the judgment of his peers and according to the known and established laws of this realm; yet, nevertheless, it being requisite, for the retaining all the before-mentioned forces, and other persons subject to military law or to the Air Force Act, in their duty, that an exact discipline be observed and that persons belonging to the said forces who mutiny, or stir up sedition, or desert His Majesty's service, or are guilty of crimes and offences to the prejudice of good order and military or air force discipline, be brought to a more exemplary and speedy punishment than the usual forms of the law will allow :

And whereas the Army Act and the Air Force Act will expire in the year one thousand nine hundred and forty-three on the following days :—

- (a) In Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, on the thirtieth day of April; and
- (b) Elsewhere, whether within or without His Majesty's dominions, on the thirty-first day of July :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Short title.

1. This Act may be cited as the Army and Air Force (Annual) Act, 1943.

Army Act
and Air
Force Act
to be in
force for
specified
times.

2.—(1) The Army Act and the Air Force Act shall be and remain in force during the periods hereinafter mentioned, and no longer, unless otherwise provided by Parliament, that is to say :—

- (a) Within Great Britain and Northern Ireland, the Channel Islands, and the Isle of Man, from the thirtieth day of April, one thousand nine hundred and forty-three, to the thirtieth day of April, one thousand nine hundred and forty-four, both inclusive; and
- (b) Elsewhere, whether within or without His Majesty's dominions, from the thirty-first day of July, one thousand nine hundred and forty-three, to the thirty-first day of July, one thousand nine hundred and forty-four, both inclusive.

(2) Notwithstanding anything in subsection (1) of section fifteen of the Army and Air Force (Annual) Act, 1932, the amendments of the Army Act and of the Air Force Act made by this Act shall come into operation in all places as from the thirtieth day of April, nineteen hundred and forty-three.

22 & 23
Geo. 5. c. 22.

(3) The Army Act and the Air Force Act, while in force, shall apply to persons subject to military law or to the Air Force Act, as the case may be, whether within or without His Majesty's dominions.

AMENDMENTS OF THE ARMY AND AIR FORCE ACTS.

3.—(1) In subsection (2) of section thirty-nine A of the Air Force Act (which relates to special offences in relation to aircraft, etc.), after the words " Air Council " there shall be inserted the words " or the Army Council ". Amendment
of s. 39A of Air
Force Act.

(2) At the end of the said section the following subsection shall be added:—

" (3) The following provisions shall have effect as respects powers of command in aircraft:—

- (a) every person subject to this Act, whatever his rank, shall, while he is in an aircraft, be under the command, as respects all matters relating to the flying or handling of the aircraft or affecting the safety thereof, of the captain of the aircraft, whether the latter is subject to this Act or not;
- (b) if the aircraft is a glider aircraft and is being towed by another aircraft, the captain of the glider aircraft, being a person subject to this Act, shall, so long as his aircraft is being towed, be under the command (as respects all the matters aforesaid) of the captain of the towing aircraft, whether the latter is subject to this Act or not;
- (c) any person subject to this Act who disobeys any lawful command given as respects any of the matters aforesaid by a person under whose command he is placed by virtue of this subsection shall, on conviction by court-martial, be liable to suffer penal servitude or such less punishment as is in this Act mentioned."

(3) Subsection (3) of section nine of the Air Force Act shall cease to have effect.

4. After section thirty-nine of the Army Act the following section shall be inserted:—

" Damage to aircraft, flying offences, &c 39A.—(1) Every person subject to military law who commits any of the following offences, that is to say,

Inclusion in Army Act of special provisions in relation to aircraft, &c.

- (a) wilfully or by wilful neglect or negligently damages, destroys, or loses any of His Majesty's aircraft or aircraft material; or

- (b) is guilty of any act or neglect likely to cause such damage, destruction, or loss; or
- (c) is guilty of any act or neglect (whether wilful or otherwise) which causes damage to or destruction of any public property by fire; or
- (d) without lawful authority disposes of any of His Majesty's aircraft or aircraft material; or
- (e) is guilty of any act or neglect in flying, or in the use of any aircraft, or in relation to any aircraft or aircraft material, which causes or is likely to cause loss of life or bodily injury to any person; or
- (f) during a state of war wilfully and without proper occasion or negligently causes the sequestration by or under the authority of a neutral state or the destruction in a neutral state of any of His Majesty's aircraft,

shall, on conviction by court-martial, be liable, if he has acted wilfully or with wilful neglect, to suffer penal servitude, or such less punishment as is in this Act mentioned, and in any case to suffer imprisonment, or such less punishment as is in this Act mentioned.

(2) Every person subject to military law who commits any of the following offences, that is to say,—

- (a) signs any certificate in relation to an aircraft or aircraft material without ensuring the accuracy thereof; or
- (b) being the pilot of one of His Majesty's aircraft, flies it at a height less than such height as may be prescribed by any regulation issued under the authority of the Army Council or the Air Council, except—
 - (i) while taking off or alighting; or
 - (ii) in such other circumstances as may be so prescribed; or
- (c) being the pilot of one of His Majesty's aircraft, flies it so as to cause, or to be likely to cause, unnecessary annoyance to any person,

shall on conviction by court-martial be liable to suffer imprisonment, or such less punishment as is in this Act mentioned.

(3) The following provisions shall have effect as respects powers of command in aircraft:—

- (a) every person subject to military law, whatever his rank, shall, while he is in an aircraft, be under the command, as respects all matters relating to the flying or handling of the aircraft or affecting the safety thereof, of the captain of the aircraft, whether the latter is subject to military law or not;
- (b) if the aircraft is a glider aircraft and is being towed by another aircraft, the captain of the glider aircraft, being a person subject to military law, shall, so long as his aircraft is being towed, be under the command (as respects all the matters aforesaid) of the captain of the towing aircraft, whether the latter is subject to military law or not;
- (c) any person subject to military law who disobeys any lawful command given as respects any of the matters aforesaid by a person under whose command he is placed by virtue of this subsection shall, on conviction by court-martial, be liable to suffer penal servitude or such less punishment as is in this Act mentioned."

5. For the proviso to subsection (1) of section forty-seven of the Army Act (which gives power to deal summarily with charges against officers and warrant officers) there shall be substituted the following proviso—

" Provided that—

- (a) in such cases or classes of cases and subject to such restrictions as the Army Council may direct, the powers exercisable under this section by a major-general appointed for the purpose may be exercised by a brigadier appointed in like manner;
- (b) no charge against a field officer shall be dealt with summarily under this section except by a general or air officer authorised to convene a general court-martial or an officer not under the rank of lieutenant-general."

6.—(1) Section one hundred and thirty-two of the Army Act (which provides for the establishment and regulation of military prisons and detention barracks) shall be amended as follows:—

- (a) at the end of paragraph (d) of subsection (2) there shall be added the words " and
- (e) for the temporary release, in such cases, for such periods and subject to such conditions as

Amendment
of s. 47 of
Army Act.

Temporary
release of
persons
detained
in military
and air force
prisons and
detention
barracks.

may be prescribed by the rules, of such prisoners or soldiers ”;

- (b) after the said subsection (2) the following subsection shall be inserted—

“ (2A) Where any person has been temporarily released from a military prison or detention barrack in accordance with rules made under this section, the currency of any sentence which he may be serving shall be suspended for a period beginning with and including the day after that on which he was released and ending with and including the day on which he returns to the prison or detention barrack or is otherwise taken into custody under this subsection, and, if any such person fails to comply with any of the conditions subject to which he was released or to return at the expiration of the period for which he was released, he may be arrested without warrant by any constable or taken into military custody, and may be kept in custody, whether civil or military, until he is taken back to the prison or detention barrack, and, unless proceedings are taken against him for an offence under section twelve or section fifteen of this Act, he shall be liable to such punishment as may be prescribed by the rules, which may include forfeiture of all ordinary pay for every day during which he was at large after the expiration of the said period.”

(2) The reference in the last foregoing subsection to section one hundred and thirty-two of the Army Act shall be deemed to include a reference to the corresponding section of the Air Force Act, and in the application of that subsection to the Air Force Act, the references therein to soldiers, a military prison and military custody shall be construed as references to air-men, an air-force prison and air-force custody, respectively.

Application of
Army Act
and Air Force
Act to
women's
forces.

7.—(1) After section one hundred and seventy-six of the Army Act, the following section shall be inserted:—

“Applica-
tion of
Army Act
to women's
forces.

176A. The Army Act shall apply, in such manner, to such extent and subject to such adaptations and modifications as may be specified in instructions of the Army Council, in relation to women who—

- (a) are employed with the Royal Army Medical Corps or the Army Dental Corps with relative rank as officers; or

- (b) are enrolled in Queen Alexandra's Imperial Military Nursing Service or the reserve thereof; or
- (c) are enrolled in the Territorial Army Nursing Service or the reserve thereof; or
- (d) are enrolled in the Auxiliary Territorial Service;

not being, in any of the said cases, women whose enrolment or other undertaking to serve was for part-time service only or for service without remuneration."

(2) After section one hundred and seventy-six of the Air Force Act, the following section shall be inserted:—

"Applica-
tion of
Air Force
Act to
women's
forces.

176A. The Air Force Act shall apply, in such manner, to such extent and subject to such adaptations and modifications as may be specified in instructions of the Air Council, in relation to women who—

- (a) are employed with the Medical Branch or the Dental Branch of the Royal Air Force with relative rank as officers; or
- (b) are enrolled in Princess Mary's Royal Air Force Nursing Service or the reserve thereof; or
- (c) are enrolled in the Women's Auxiliary Air Force;

not being, in any of the said cases, women whose enrolment or other undertaking to serve was for part-time service only or for service without remuneration."

(3) Regulation six of the Defence (Women's Forces) Regulations, 1941, shall cease to have effect:

Provided that any instructions issued under the said Regulation by the Army Council or the Air Council which are in force when this section comes into operation shall continue in force (without prejudice to the power of revocation or amendment thereof) and shall have effect as if they had been issued under the section inserted in the Army Act or the Air Force Act, as the case may be, by this section.

8. In paragraph (2) of section one hundred and eighty-three of the Army Act (which specifies the authorities who have power to reduce a non-commissioned officer to the ranks or to a lower grade) for the words "or brigadier" there shall be substituted the words "brigadier or colonel".

Amendment
of s. 183 of
Army Act.

Amendment
of s. 187c of
Army Act
and s. 187c
of Air Force
Act.

9. Section one hundred and eighty-seven C of the Army Act (which provides for the extra-territorial operation of the military law of certain Dominions) and section one hundred and eighty-seven C of the Air Force Act (which contains corresponding provisions relating to air force law) shall cease to apply to the Commonwealth of Australia and accordingly shall have effect subject to the following amendments:—

(a) for the words “ a Dominion to which this subsection applies ” there shall be substituted the words “ the Dominion of New Zealand ”; and

(b) the words “ The Dominions to which this subsection applies are the Commonwealth of Australia and the Dominion of New Zealand ” shall be omitted.

Amendment
of s. 190 of
Army Act.

10.—(1) In sub-paragraph (a) of paragraph (34) of section one hundred and ninety of the Army Act the words “ and Northern Ireland ” and the word “ and ” at the end of that sub-paragraph shall be omitted, and at the end of the said paragraph there shall be inserted the words “ and

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c. 93.

(c) as regards Northern Ireland, means the Petty Sessions (Ireland) Act, 1851, and any Act (including an Act of the Parliament of Northern Ireland) amending that Act.”

(2) In sub-paragraph (a) of paragraph (35) of the said section one hundred and ninety the words “ and Northern Ireland ” and the word “ and ” at the end of sub-paragraph (b) of the said paragraph shall be omitted, and after the said sub-paragraph (b) there shall be inserted the words—

“ (c) as regards Northern Ireland, means a court of summary jurisdiction constituted in accordance with the provisions of the Summary Jurisdiction and Criminal Justice Act (Northern Ireland), 1935; and ”.

(3) After paragraph (41) of the said section one hundred and ninety there shall be added the following paragraphs:—

“ (42) The expression ‘ aircraft ’ includes aeroplanes, balloons, kite balloons, airships, gliders or other machines for flying:

(43) The expression “ aircraft material ” includes any engines, fittings, guns, gear, instruments or apparatus for use in connection with aircraft, and any components and accessories of aircraft, and petrol and any other substance used for providing motive power for aircraft, and lubricating oil ”.

11.—(1) In paragraph (4) of section one hundred and ninety of the Air Force Act (which paragraph defines the expression “ officer ”), the word “ and ” at the end of sub-paragraph (c) shall be omitted, and at the end of sub-paragraph (d) there shall be inserted the words “ and (e) any officer of His Majesty’s Indian Air Force ”. Amendment
of s. 190 of
Air Force Act.

(2) In sub-paragraph (a) of paragraph (34) of the said section one hundred and ninety the words “ and Northern Ireland ” and the word “ and ” at the end of that sub-paragraph shall be omitted, and at the end of the said paragraph there shall be inserted the words “ and

(c) as regards Northern Ireland, means the Petty Sessions (Ireland) Act, 1851, and any Act (including an Act of the Parliament of Northern Ireland) amending that Act.”

(3) In sub-paragraph (a) of paragraph (35) of the said section one hundred and ninety the words “ and Northern Ireland ” and the word “ and ” at the end of sub-paragraph (b) of the said paragraph shall be omitted, and after the said sub-paragraph (b) there shall be inserted the words—

“ (c) as regards Northern Ireland, means a court of summary jurisdiction constituted in accordance with the provisions of the Summary Jurisdiction and Criminal Justice Act (Northern Ireland), 1935; and ”,

and the sub-paragraph at present numbered “ (c) ” shall be re-numbered “ (d) ”.

(4) In paragraph (42) of the said section one hundred and ninety after the word “ airships ” there shall be inserted the word “ gliders ”.